

2:00 PM LINE 9

25-CIV-08222

ANGIE M. CHRISTENSEN VS. CITY OF BELMONT

ANGIE M. CHRISTENSEN
CITY OF BELMONT

PRO SE
ANA SANDERSON

Defendant's Demurrer to Plaintiff's Complaint

TENTATIVE RULING:

As a preliminary matter, there is no indication that defendant City of Belmont gave proper notice of the hearing date or location to plaintiff Angie M. Christensen. (See Cal. Rules of Court, rules 3.1110(b)(1).) The notice states that the hearing will take place in Department 19 on September 21, 2026. This was changed by the clerk's office upon filing to Department 28 and September 23, 2026. No proof of service of the amended hearing date and location has been filed. Accordingly, there is no indication that plaintiff Angie M. Christensen has received proper notice of the hearing, and a "court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question." (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205.)

Counsel for defendant City of Belmont is ordered to appear in Department 28 (in person or by Zoom) on September 23, 2026 at 2:00 p.m. to advise the court whether notice of the changed hearing date and location was served on plaintiff.

Unless defendant demonstrates that notice of the correct date and location of the hearing was served, or plaintiff appears to contest the tentative ruling, defendant's Demurrer to plaintiff's Complaint is **CONTINUED** to October 21, 2026 at 2:00 p.m. in Department 28, 9800 No. Humboldt St., Courtroom I, San Mateo, California 94401. **IF THE HEARING IS CONTINUED, DEFENDANT'S COUNSEL IS ORDERED TO GIVE NOTICE TO PLAINTIFF OF THE NEW HEARING DATE, AND TO FILE PROOF OF SERVICE OF SUCH NOTICE.**

Defendant's request for judicial notice (RJN) is **GRANTED**.

* * *

Notwithstanding that this hearing may be continued and that plaintiff has not filed an opposition, given that it appears that plaintiff failed to timely present a government claim, the court will issue the following tentative ruling.

"Public entities are protected by sovereign immunity for injuries arising from their acts or omissions, except as provided in the [Government Claims] Act or other statutes." (*Lowry v. Port San Luis Harbor Dist.* (2020) 56 Cal.App.5th 211, 218; see Gov. Code, § 815.) All claims for money or damages against local public entities must be presented in compliance with the

Government Claims Act. (Gov. Code, § 905.) If a claim is not timely presented, any lawsuit for the money or damages is barred. (*Id.*, § 945.4.)

“[A] plaintiff must allege facts demonstrating or excusing compliance with the claim presentation requirement. Otherwise, his complaint is subject to a general demurrer for failure to state facts sufficient to constitute a cause of action.” (*State of California v. Superior Court* (2004) 32 Cal.4th 1234, 1243.)

It is indisputable that the City is a local public entity, such that Christensen’s claims are subject to the claims-presentation requirement of the Government Claims Act. (See Gov. Code, § 900.4.) Exhibit A to defendant’s RJN is a copy of plaintiff’s government claim, which was apparently signed on December 20, 2024, but states that her alleged injuries occurred on October 31, 2023.

The Complaint does not allege compliance with or excuse from the requirement to timely submit a government claim (see Oct. 30, 2026 Complaint, § 9), and thus it fails to state facts sufficient to constitute a cause of action. Accordingly, the demurrer is **SUSTAINED without leave to amend**.

Christensen has not requested leave to amend the Complaint to cure the defect. Thus, the court is under no obligation to grant leave to amend. (*Thornton v. California Unemployment Ins. Appeals Bd.* (2012) 204 Cal.App.4th 1403, 1423.) Furthermore, in light of the allegations of the Complaint and the materials of which the City requests the court take judicial notice, amendment to be futile. (See *Save Lafayette Trees v. City of Lafayette* (2019) 32 Cal.App.5th 148, 154.) It appears Christensen presented a claim for the incident and her injuries, more than a year after the incident. (Dec. 30, 2025 Request for Judicial Notice, exh. A.) This is outside both the six-month window provided for presenting a claim and the one-year window to apply to present a late claim. (See Gov. Code, § 911.2, subd. (a), § 911.4, subd. (b).)

Although leave to amend is liberally allowed, such leave should not be granted where, in all probability, amendment would be futile. (*Foroudi v. Aerospace Corp.* (2020) 57 Cal.App.5th 992, 1001.) It is the burden of the party seeking leave to amend to show the possibility that amendment can cure the legal defects of the pleading. (*A.J. Fistes Corp. v. GL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 687.)

If Christensen seeks leave to amend, she should properly contest the tentative ruling and appear at the hearing (in person or via Zoom) to state facts that provide a reasonable possibility that she can state a cause of action.

2:00 PM LINE 10

25-CLJ-02523

CAPITAL ONE, N.A. VS. OSWALDO SABAN

CAPITAL ONE, N.A.
OSWALDO SABAN

JANET L. BROWN
JENNIFER TUNDER

Plaintiff's Motion for Summary Judgment or in the Alternative Summary Adjudication

TENTATIVE RULING:

Plaintiff's unopposed motion for summary judgment is **GRANTED**.

Plaintiff has met its moving burden under Code of Civil Procedure, section 437c, subdivision (p)(1) to show that there is no defense to the action. See Undisputed Material Facts 1-8 and the declaration of Maria Conley.

Judgment shall be entered for plaintiff in the amount of \$8,380.38. The evidence submitted by plaintiff, as referenced in its separate statement, demonstrates that there are no triable issues of material fact, and that defendant breached his agreement to pay the amount due under the Cardmember Agreement with Discover Bank, to which plaintiff Capitol One, N.A., is the successor by merger. Plaintiff's evidence shows that defendant owed \$8,380.74 on the credit card account ending in 9734 as of July 20, 2022, which amount has not been paid despite a demand. (See Conley Decl., ¶¶ 1, 6, 7, 11; exhs. A & B, at p. 11.)

Plaintiff is to prepare the proposed judgment. Plaintiff's memorandum of costs is premature. If defendant does not timely file a motion to tax or strike, the court will amend the judgment to include costs as permitted by the Code of Civil Procedure, section 1033.5.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order *repeating verbatim the tentative ruling*" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.